

**BOARD OF EDUCATION
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL
DISTRICT
Cuyahoga County, Ohio**

The Board of Education of Brecksville-Broadview Heights City School District, Ohio, met in regular session on May 27, 2020 commencing at 7pm, with following members present:

_____ present _____ present
_____ present _____ present
_____ present

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

**RESOLUTION # _____
RESOLUTION TO APPROVE THEN AND NOW CERTIFICATE(S)
(R.C. Section 5705.41)**

WHEREAS, Ohio Revised Code Section 5705.41(D) states in part that no orders or contracts involving the expenditure of money are to be made unless there is a certificate of the fiscal officer that the amount required for the order or contract has been lawfully appropriated and is in the treasury or in the process of collection to the credit of an appropriate fund free from any previous encumbrances; and

WHEREAS, Ohio Revised Code Section 5705.41(D) permits the use of a "Then and Now Certificate" as an allowable exception to the above requirement provided the fiscal officer can certify that both at the time that the contract or order was made and at the time that she is completing her certification, sufficient funds were available or in the process of collection, to the credit of a proper fund, properly appropriated and free from any previous encumbrance, the taxing authority can authorize the drawing of a warrant by resolution; and

WHEREAS, Ohio Revised Code 5705.41(D) goes on to state if the amount involved is less than one hundred dollars in the case of counties, or three thousand in the case of all other subdivisions or taxing units, the fiscal officer may authorize it to be paid without such affirmation of the taxing authority of the subdivision or taxing unit, if such expenditure is otherwise valid.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT, CUYAHOGA COUNTY, OHIO, A MAJORITY OF A QUORUM OF THE BOARD CONCURRING, THAT:

Section 1. The Board desires to authorize the drawing of a warrant for the following items:

INVOICE DATE	PO DATE	PO #	Vendor/Description	PO Amount
4/13/2017	3/31/2020	66941	Cleveland Municipal School District	\$8000.00
8/31/2017	3/31/2020	66941	Cleveland Municipal School District	\$8000.00
2/16/2018	3/31/2020	66941	Cleveland Municipal School District	\$8000.00
8/22/2018	3/31/2020	66941	Cleveland Municipal School District	\$8000.00
3/07/2019	3/31/2020	66941	Cleveland Municipal School District	\$8000.00

9/01/2019	3/31/2020	66941	Cleveland Municipal School District	\$8000.00
3/04/2020	3/31/2020	66941	Cleveland Municipal School District	\$8000.00

_____ seconded the motion.

Upon roll call on the adoption of the Resolution, the vote was as follows:

_____ <u>yes</u>	_____ <u>yes</u>
_____ <u>yes</u>	_____ <u>yes</u>
_____ <u>yes</u>	

TREASURER'S CERTIFICATION

The foregoing is a true and correct excerpt from the minutes of the regular meeting on _____ of the Board of Education of the Brecksville-Broadview Heights City School District, showing the adoption of the resolution hereinabove set forth.

Treasurer, Board of Education
Brecksville-Broadview Heights City School District, Ohio